

MEETING MINUTES

The Fifteenth Meeting of the Medford School Committee

October 16, 2023

Executive Session: 5:15

Regular Meeting: 6:00 PM

Held at the Howard Alden Memorial Chambers, Medford City Hall and via remote participation.

Please be advised that on October 16, 2023 at 6:00 pm there will be a Regular Meeting of the Medford School Committee held at the Howard Alden Memorial Chambers, Medford City Hall and via remote participation.

The meeting can be viewed through Medford Community Media on Comcast and Verizon. Participants can participate in person or remotely by using the following information:

Medford Public Schools invites you to a meeting with a remote participation option.	
Virtual Link	https://mps02155-org.zoom.us/j/96509624381
Meeting ID	Meeting ID: 965 0962 4381
Dial by Location	https://mps02155-org.zoom.us/j/96509624381

Agenda

- I. Roll Call for Attendance of Members and Student Representatives - 6/1 Member Ruseau on his way
- II. Salute the Flag
- III. Executive Session

***Motion to enter Executive Session by Member McLaughlin, Second by Member Graham - 7/0 passed
Member Ruseau was present***

Regular Session reconvened at 6:00 pm

- IV. Consent Agenda

- Bills and Payrolls
- Regular School Committee Minutes, **October 2, 2023**

Motion to approve by Member Ruseau, Second by Member Hays - 7/0 passed

- V. Report of Subcommittees - None

VI. Report of the Superintendent

1. **Superintendent's Updates and Comments** - Dr. Marice Edouard-Vincent, Superintendent
2. **Student Advisory Council and Student Introductions** - Dr. Peter J. Cushing, Assistant Superintendent of Operations, Enrichment & Innovation
 - 3 Students from SAC attended: Oprah Nkera, Eleanor O'Hara, Darren Troung
 - They will meet monthly
 - There will be multiple and rotating students coming to meetings so they don't feel burdened by the schedule..
 - 2:30 pm is an ideal time (confirmed by students in attendance) to have the meetings with the school committee on the dates proposed.
 - Member Graham cannot attend the January 17th meeting.
 - Member Ruseau - it needs to be a formal meeting and an agenda posted, open to the public, school open and needs security.
 - Member Graham - Hold it by zoom and no building requirements and security will be needed. On agenda an exclusive zoom link and confirmation by the School Committee to Central who will be in attendance for each meeting prior.

Motion by Member McLaughlin to ask MASC to offer training to our Student Advisory Council (1 hour training), Second by Member Kreatz - 7/0 passed

3. **Report on Superintendent's Goals for School Year 2023-2024** and update on the Status of Medford School Committee Goals - Dr. Marice Edouard-Vincent, Superintendent (Previously tabled 10.2.23)

Motion to move from table by Member McLaughlin, Second by Member Graham - 7/0 passed

4. **Report on MHS Culture and Climate Survey from School Year 2022-2023** - Dr. Marice Edouard-Vincent, Superintendent (Previously tabled 10.2.23)

Motion to move from table by Member McLaughlin, Second by Member Hays - 7/0 passed

- Member McLaughlin respectfully requests that demographics be included in questions.

Motion to use panoramic survey in January by Member McLaughlin, Second by Member Hays - 6/0/1 Mayor abstained, motion passed

5. **Recommendation to Approve a \$10,000 donation** by The Cummings Foundation to the Center for Citizenship and Social Responsibility (CCSR) - Dr. Marice Edouard-Vincent, Superintendent

Motion to approve donation by Member Graham, Second Member McLaughlin - 7/0 passed

6. **MCAS & MCAS Alternate Report** - Suzanne B. Galusi, Assistant Superintendent of Curriculum & Instruction and Joan Bowen, Director of Student Services

Presentations of the Public (not to begin before 7:00 pm) - None

VII. Continued Business

2023-21 Offered by Jenny Graham and Paul Ruseau (Previously tabled 10.2.2023)

Be it resolved that the Strategic Planning Subcommittee meet to develop a transportation survey to understand the needs of the MPS community. Be it further resolved that the subcommittee will issue the survey and compile the results and a recommendation to the Medford School Committee by June 1, 2024.

Date of Request: September 6, 2023

Date Requested to be on Agenda: October 2, 2023

***Motion to move from table by Member Graham, second by Member McLaughlin - 7/0 passed
Motion to approve by Member Graham, second by Member McLaughlin - 7/0 passed***

2023-22 Offered by Paul Ruseau (Previously tabled 10.2.2023)

The Wellness Policy (ADF) will be sent to the Rules and Policy Subcommittee for revision and that it be revised as necessary to update sections related to allergies. The current policy and recommended revised policy will be returned to this committee no later than our first meeting in December of 2023.

Date of Request: September 22, 2023

Date Requested to be on Agenda: October 2, 2023

Motion to move from table Member McLaughlin, second by Member Graham - 7/0 passed

Motion to approve by Member Ruseau as amended for first meeting in February 2024 , second by Member McLaughlin - 7/0 passed

VIII. New Business

2023-23 Offered by Member Ruseau

The Medford School Committee may send a delegate and alternate delegate to the Massachusetts Association of School Committees(MASC)/Massachusetts Association of School Superintendents (MASS) Annual Joint Conference for the purpose of voting during the delegate assembly on the resolutions of the MASC. The conference is Wednesday, November 8 through Friday, November 10, with the delegate assembly being held on Friday, November 10.

Voting is presently only allowed in person, and thus it is recommended that only members that are able to and are planning to attend the conference be nominated.

Are there nominations for a delegate?

Are there nominations for an alternate delegate?

Date of Request: October 3, 2023

Date Requested to be on Agenda: October 16, 2023

Motion by Member McLaughlin to nominate Member Ruseau as delegate, second by Member Graham - 7/0 passed

Motion by Member Graham to nominate alternate as Member McLaughlin, Second by Member Mustone - 7/0 passed

2023 - 24 Offered by Member Ruseau

The School Committee must vote on each of the eight resolutions from the Report of the Resolutions Committee of the Massachusetts Association of School Committees. Members received the report as part of their MASC/MASS Joint Conference 2023 materials they received via US Postal Service in September of this year. The votes we take will guide the delegate on how to vote during the assembly, which will be held on Wednesday, November 8, 2023.

The full language of the resolutions can be found at <https://www.masc.org/2023-report-of-the-resolutions-committee/> and will be included in the meeting materials on October 16, 2023.

Resolution 1: FULL, STABLE FUNDING FOR METCO

Resolution 2: REGARDING INVESTIGATIONS AND RECOMMENDATIONS FOR
TRANSPORTATION BIDDING PROCEDURES

Resolution 3: REGIONAL TRANSPORTATION

Resolution 4: DIVERSITY, EQUITY, AND INCLUSION

Resolution 5: MA SCHOOL BUILDING AUTHORITY

Resolution 6: SCHOOL BUS STOP ARM SURVEILLANCE ACT AND ENFORCEMENT AND
PENALTIES

Resolution 7: RELATED TO MCAS

Resolution 8: SAFE STORAGE OF FIREARMS

The votes of the Medford School Committee are considered binding on the delegate unless the language as presented at the October 16, 2023 meeting is different from the language up for final adoption at the delegate assembly on November 8, 2023. The reason votes are otherwise considered guidance is that the exact language voted on during the assembly can be modified by amendments during the assembly and returning to the School Committee for a vote on the final language is not possible.

Date of Request: October 6, 2023

Date Requested to be on Agenda: October 16, 2023

Motion by Member Graham to waive read, Second by Member McLaughlin - 7/0 passed

Motion to approve by Member Graham, second by Member McLaughlin

2023-25 Offered by Member Hays, Member McLaughlin, Member Mustone

Policy First Reading

Whereas the Medford School Committee reaffirmed its support for the rights of LGBTQ+ youth through resolution 2023-13 passed on June 5, 2023, the following new policy ACA-1 NONDISCRIMINATION ON THE BASIS OF GENDER IDENTITY is offered for a first reading for discussion, comments, and public comment, per the Rules of the School Committee.

ACA-1 NONDISCRIMINATION ON THE BASIS OF GENDER IDENTITY

The Medford Public Schools is committed to maintaining an educational environment and workplace where discrimination on the basis of gender identity, sex, sexual orientation, or gender expression is not tolerated. The school district does not and will not discriminate on the basis of gender identity, sex, sexual orientation, or gender expression in the educational programs and activities of the public schools, and strives to create an environment where all students and staff feel safe, welcome and included. The Medford Public Schools takes allegations of discrimination and harassment seriously and will respond promptly to complaints. Where it is determined that inappropriate conduct has occurred, the Medford Public Schools will act promptly to eliminate the conduct and will impose corrective action as necessary, including disciplinary action where appropriate.

To help create a safe and supportive environment for all students, the school district will, consistent with applicable laws and guidance, take the following steps:

DEFINITIONS

Understanding the terminology associated with gender identity is important to providing a safe and supportive school environment for students whose rights are protected under the law. The following terms are not intended to label students but are defined to assist in understanding the guidance presented. The terminology in this area is constantly evolving, and preferences for particular terminology vary widely. Administrators, school staff, volunteers, students and others who interact with students are expected to be sensitive to the ways in which individual students who are transgender may wish to be identified.

Cisgender: the term to describe a person whose gender identity corresponds to their assigned sex at birth.

Gender Expression: the manner in which a person represents or expresses gender to others, often through behavior, clothing, hairstyles, activities, voice, or mannerisms.

Gender Identity: a person's internal sense of being male, female, some combination of male and female, or neither male nor female

Gender Marker: the designation on school and other records that indicates a person's gender.

Gender Nonconforming: a term used to describe people whose gender expression differs from stereotypic expectations. The terms gender variant or gender atypical are also used.

Transition: the process by which an individual goes from living and identifying as one gender to living and identifying as another

Genderqueer: a term used by some people who experience their gender identity and/or gender expression as falling outside the categories of man and woman. They may define their gender as falling somewhere in between man and woman, or they may define it as wholly different from these terms.

Nonbinary: a person who identifies with or expresses a gender identity that is neither entirely male nor entirely female.

Sexual Orientation: describes an individual's enduring physical, romantic and/or emotional attraction to another person based on the gender of the other person.

Transgender: an umbrella term used to describe a person whose gender identity or gender expression is different from that traditionally associated with the assigned sex at birth.

Names/Pronouns

Medford Public Schools recognizes that every student has the right to choose and be addressed by the name and pronouns that correspond to the gender identity they consistently assert while at school, regardless of the student's assigned birth gender and name that appear on the student's birth certificate. Court orders are not required to update

student records to reflect changes in a student's name and gender markers. According to DESE, "Massachusetts' law recognizes common law name changes. An individual may adopt a name that is different from the name that appears on his or her birth certificate provided the change of name is done for an honest reason, with no fraudulent intent. Nothing more formal than usage is required." Schools will work with the student and the parents/guardians/caregivers if they are involved in the process, or in the case of a younger student with the student and the student's parents/guardians/caregivers, to develop a plan for communicating any name and pronoun change within the school.

Transitions

The decision about whether and how to undergo social and/or medical gender transition is personal and depends on the unique circumstances of each individual. There is no threshold medical or mental health diagnosis or treatment requirement that any student must meet in order to have his or her gender identity recognized and respected by a school. When a school is informed of a student's transition, the school shall hold a meeting with the student and the parents/guardians/caregivers of the student if they are involved in the process, or in the case of a younger student with the student and the student's parents/guardians/caregivers, to develop a transition plan to provide a safe and supportive educational environment for the student and to address any concerns that may arise. Some transgender and gender nonconforming students are not openly so at home for reasons such as safety concerns or lack of acceptance. School personnel should speak with the student first before discussing a student's gender nonconformity or transgender status with the student's parent or guardian. For the same reasons, school personnel should discuss with the student how the school should refer to the student, e.g., appropriate pronoun use, in written communication to the student's parent or guardian.

Restrooms, Locker Rooms, and Changing Facilities

All students are entitled to have access to restrooms, locker rooms and changing facilities that are sanitary, safe, and adequate, so they can comfortably and fully engage in their school program and activities. Students in the Medford Public Schools will have access to the restroom, locker room, and changing facility that corresponds to their gender identity. Transgender and gender nonconforming students who are uncomfortable using a sex-segregated restroom, locker room, or changing facility should be provided with safe and adequate alternatives, such as private changing areas, designated gender neutral restrooms, single stall gender neutral restrooms, or the nurse's or main office restroom. However, under no circumstances will a student be required to use gender neutral facilities because they are transgender or gender nonconforming.

Privacy, Confidentiality and Student Records

Under state law, information about a student's assigned birth sex, name change for gender identity purposes, gender transition, medical or mental health treatment related to gender identity, or any other information of a similar nature, regardless of its form, is part of the individual's student record (see Massachusetts Student Records Regulations, 603 CMR 23.00). Medford Public Schools will ensure that all information in relation to a student's gender identity shall be kept confidential in accordance with applicable, federal, state and local privacy laws and regulations. Information that may reveal a student's gender identity to others will not be disclosed unless the school is legally required to do so, or unless the disclosure has been authorized by the student, or in the case of a younger student, by the student's parents/guardians/caregivers. School staff will consult with a student and the

parents/guardians/caregivers of the student if they are involved in the process, or in the case of a younger student with the student and the student's parents/guardians/caregivers, when determining whether any such information should be disclosed, and if so, how much information should be disclosed and to whom.

Gender Markers on Student Records

A gender marker is the designation on school and other records that indicates a student's gender. For transgender students a documented gender marker (for example, "male" or "female" on a permanent record) should reflect the student's gender identity, not the student's assigned sex. Upon request by the student or, in the case of young students not yet able to advocate for themselves, by the parent or guardian, the school should change the gender marker on the record for transgender students. In addition, transgender students who transition after having completed high school, may ask their previous schools to amend school records or a diploma or transcript that include the student's birth name and gender. When requested, and when satisfied with the gender identity information provided, schools should amend the student's record, including reissuing a high school diploma or transcript, to reflect the student's current name and gender.

Physical Education Classes and Intramural and Interscholastic Athletic Activities

Physical education is a required course in all grades in Massachusetts' public schools, and school-based athletics are an important part of many students' lives. Medford Public Schools will ensure that where there are sex-segregated classes or athletic activities, including intramural and interscholastic athletics, all students will be allowed to participate in a manner consistent with their gender identity. With respect to interscholastic athletics, the Massachusetts Interscholastic Athletic Association will rely on the gender determination made by the student's district; it will not make separate gender identity determinations.

Dress Code

Students are permitted to dress in compliance with the school district's dress code in a manner consistent with their gender identity and/or gender expression.

Cross Reference:

JB	Equal Educational Opportunities
AC	Nondiscrimination
ACAB	Prohibition of Harassment
AC-E/ACA-E	Title IX/Chapter 622
JI	Student Rights and Responsibilities
MA 603 CMR 26.00	Access to Equal Education Opportunity Regulations
MA, 603 CMR 23.00	Student Records Regulations
Title VI	Civil Rights Act of 1964
MA St. 2011, c.199	An Act Relative to Gender Identity
MA St. 2016, c. 134	An Act Relative to Transgender Anti-Discrimination
Massachusetts Interscholastic Athletic Association (MIAA) General Rules, Rule 43: Gender and Participation	

Massachusetts Department of Elementary and Secondary Education's Creating a Safe and Supportive School Environment- Nondiscrimination on the Basis of Gender Identity

First Adopted: TBD

Last Amended: N/A

Last Reviewed: N/A
Review Frequency: TBD
Next Review: TBD
Date of Request: October 11, 2023
Date Requested to be on Agenda: October 16, 2023

Motion to move to a Committee of the Whole Meeting in November by Member McLaughlin, second by Member Graham - 7/0 passed

IX. Reports Requested - None

X. Condolences - None

XI. Next Meeting

November 6, 2023 meeting is canceled due to the election. **November 20, 2023** is the next regular meeting.

XII. Adjournment

Motion to adjourn by Member McLaughlin, second by Member Graham 7/0 passed
Meeting adjourned at 9:10 pm